AUSTRALIAN DEMOCRACY NETWORK

15/10/25

Committee Secretary
Joint Standing Committee on Electoral Matters
Parliament House

Dear Committee Members,

Australian Democracy Network is grateful for the opportunity to make a submission to the Joint Standing Committee on Electoral Matters' inquiry into all aspects of the conduct of the 2025 federal election.

Submission to the Joint Standing Committee on Electoral Matters Inquiry into the 2025 Federal Election

The 2025 Australian election, while demonstrating robust electoral machinery, brought to light emergent threats. These threats are not merely isolated incidents but rather symptomatic of global trends eroding electoral integrity, public discourse, and equitable political competition. A flourishing democracy is indispensable for national advancement.

The primary issues addressed in this submission are:

- Increased aggressive behaviour targeting electoral officials, volunteers, and voters, exacerbated by a well-funded disinformation ecosystem.
- Insufficient authorisation framework for political communications, which fails to adequately address digital astroturfing, dark money contributions, and AI-driven manipulation.
- Unintended outcomes of recent electoral reforms.
- Persistent threat of foreign and domestic interference, subtly influencing public discourse and advancing state capture through intricate influence networks.

A comprehensive strategy is essential to address these challenges, as reactive measures such as fact-checking prove insufficient. Policy initiatives must focus on fortifying democratic institutions, enhancing transparency in campaign finance and lobbying, and cultivating public resilience against information warfare. This submission undertakes an analysis of these issues and presents recommendations to safeguard Australian democracy.

The Australian Democracy Network's Mandate for a Healthy Democracy

Australian Democracy Network (ADN) brings people and organisations together to campaign for the changes that make our democracy more fair, clean, transparent, accountable, accessible, and participatory. Together, we work towards a healthy Australian democracy which puts people and planet first.

While Australia possesses a robust electoral system, mandatory voting, and orderly power transitions, its democratic framework is facing significant growing vulnerabilities. The efficacy of public discourse and the development of high-quality, responsive, and citizen-centric policy are substantially undermined by diminishing press freedom, concentrated media ownership, and the absence of a human rights charter.

These democratic challenges, typified by state capture and the disproportionate influence of a powerful minority[1], is evidenced by issues such as aggression at polling stations, misleading political advertisements, and non-transparent campaign financing. Our recommendations are designed not as immediate solutions, but as a pathway towards a more enduring, transparent, and inclusive democratic system.

Part 1: The Integrity of the Electoral Process

The Nexus Between Disinformation and Unacceptable Behaviour

The 2025 federal election was marred by a concerning increase in incidents of aggressive, obstructive, and intimidating behaviour directed at voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials. This phenomenon is a direct result of the deteriorating quality of public discourse and the intentional proliferation of misinformation and disinformation. The chair of the JSCEM, Jerome Laxale MP, spoke of the Americanisation of our democracy and the weirdest and craziest stuff happening at polling booths, linking these behaviours to the influence of incredibly well-funded third-party operators.[2]

This aggression is a predictable consequence of a long-term strategy designed to sow distrust in democratic institutions. As documented in a recent AEC report, a range of false claims were detected and catalogued on the 2025 election disinformation register. These included spurious allegations about six million missing ballot papers, substantial errors in the electoral roll, and deceptive advice on how to cast a Vote of No Confidence.[3] These claims are not random errors; they are targeted attacks on the integrity of the electoral system itself. The goal is not to change minds but to unmoor audiences from consensus reality and prevent them from being able to think and to judge.[4] When voters are led to believe that the electoral process is fundamentally fraudulent, their trust in the system and the officials who administer it collapses. This loss of faith, amplified by

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[1] *See* Australian Democracy Network,Confronting State Capture, https://australiandemocracy.org.au/statecapture

[2] Josh Butler and Dan Jervis-Bardy, "Unprecedented 'weirdest stuff' and concerns about Americanisation of Australia's 2025 election to be probed in review," The Guardian, https://www.theguardian.com/australia-news/2025/sep/03/voter-intimidation-shadowy-groups-and-interference-rising-threats-to-australian-elections-under-review September 3, 2025.

[3] Australian Electoral Commission, "Disinformation register," aec.gov.au/media/disinformation-register-2025.htm, accessed September 26, 2025.

[4] Hannah Arendt, *The Origins of Totalitarianism*, 1951.

hyper-partisanship, creates an environment where aggressive behaviour is not just possible but is seen as a justified response to a perceived injustice. Therefore, addressing the increase in intimidation requires looking upstream at the sources and funding of the disinformation campaigns that incite such behaviour.

The Australian Electoral Commission's Evolving Role

The AEC is a world-class institution that enjoys a high level of public trust and satisfaction, a reputation envied by other democracies. Its efforts to provide clear, accurate information and to manage a disinformation register demonstrate a proactive approach to a new set of challenges. However, the 2025 election has underscored that the AEC's current powers are insufficient to manage the emerging digital and physical threats. The AEC itself has raised concerns about the ongoing threats of interference in our electoral system, both foreign and domestic.[5]

The current regulatory landscape, particularly around political communications, is outdated for the digital era. The AEC's election-focused initiatives are too narrow in scope, relying on voluntary cooperation by digital platforms and neglecting the monitoring of alt-platforms where much of the disinformation originates. This leaves a significant gap where the AEC is forced to react to misinformation rather than proactively preventing its spread. The AEC has also long expressed concern about party-issued postal vote applications, noting that they have the potential to mislead voters, and are a perennial source of voter complaints.[6] This indicates a need for stronger powers within the AEC and other entities to regulate not just conduct at polling places but also the tactics used by political parties and third-party groups to influence the electoral process itself.

Recommendations for a Safer and More Accountable Electoral Environment

To address the challenges to electoral integrity and the safety of electoral participants, the following reforms are recommended:

1. Legislative reforms should mandate that digital platforms and social media companies must cooperate with the AEC during a federal election period. This cooperation should include providing data access to the AEC and research academics for monitoring and analysis of electoral disinformation and removing content that has been identified as a clear threat to the electoral process.

2. The practice of political parties sending unsolicited postal vote application forms should be either prohibited or strictly regulated. The AEC should be the sole distributor of official postal vote materials, and it should be empowered to issue directives to any party that uses deceptive tactics or misleading imagery to imply their forms are officially sanctioned.

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[5] Australian Electoral Commission, Election Security Environment Overview, https://www.aec.gov.au/About_AEC/files/eiat/election-security-environment-overview.pdf January 2025, accessed September 26, 2025.
[6] Australian Electoral Commission, "AEC warning on third-party postal vote applications," aec.gov.au/media/2025/03-31a.htm, accessed September 26, 2025.

Part 2: The Information Ecosystem

Reforming the Authorisation Framework for Communications

The current authorisation framework for political communications is fundamentally unsuited to the modern digital era. It exists within a broken information ecosystem that poisons civic participation and undermines democracy. This ecosystem is defined by several key characteristics:

- The business model of social media platforms incentivises and amplifies sensational, outrageous, and often false content that drives engagement and profit.[7]
- Australia has one of the world's most concentrated media markets, where dominant narratives particularly on issues like climate and energy, can be repeated across numerous channels, hardening public sentiment and discrediting alternative viewpoints.[8]
- Dirty Tactics: The use of astroturfing and other coordinated tactics by well-resourced actors to create the illusion of grassroots support and flood the zone with confusing or contradictory messages.[9]

A more effective, strategic approach must address the entire ecosystem. The problem of disinformation is not just a technological issue but a structural issue of political and economic power. The content itself is often produced and disseminated by a sophisticated network of actors with clear political and financial motives. An effective response requires a more comprehensive framework of interventions.

The Imperative of Truth in Political Advertising

The current federal electoral system allows candidates and parties to lie in political advertising, an issue repeatedly highlighted as a big problem.[10] This practice demeans public debate and erodes trust in politics, with notable examples including the ALP Mediscare campaign and the Coalition's false claims of a death tax.

A solution exists in Australia's own history. The truth in political advertising laws in South Australia and the ACT prohibit materially misleading statements of fact in political material.[11] This South Australian model, legislated in 1985, is valued by politicians for creating guardrails and fostering a healthier campaign culture. Polling indicates that there is overwhelming majority support for such a law, with 87% of Australians supporting truth in political advertising laws.[12]

To address the concerns that a government body should not be the arbiter of truth, a federal law should create an independent Electoral Communications Panel to adjudicate complaints and issue

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[7] Australian Democracy Network, "Confronting State Capture" report, australiandemocracy.org.au/statecapture, accessed September 30, 2025.
[8] Comms Declare, "The Astroturfing Election Report," commsdeclare.org/2025/07/07/the-astroturfing-election-report, accessed September 30, 2025.
[9] Moulis Legal, "The Freedom of Information Amendments – a less is less approach to transparency," moulislegal.com/knowledge-centre/the-freedom-of-information-amendments-a-less-is-less-approach-to-transparency/, accessed September 30, 2025.
[10] Australian Democracy Network, "Confronting State Capture" report
[11] Ibid
[12] The Australia Insitute, "Possible, Practical, and Popular", https://australiainstitute.org.au/wp-content/uploads/2021/10/211025-Truth-in-Political-Advertising-WEB.pdf, accessed September 30, 2025.

requests for retractions, thereby protecting the AEC's crucial reputation for impartiality.

Building Public Resilience: The Need for Digital Literacy

While regulation targets the supply of disinformation, building public resilience must target the demand. The Joint Standing Committee on Electoral Matters has previously noted clear evidence that the quality of formal civics education varies considerably across jurisdictions, leaving young people ill-equipped to be informed citizens. Furthermore, the proliferation of digital platforms and AI-generated content makes the task of supporting an informed public increasingly challenging.

We must agree with international best practice that the long-term impact of media and digital literacy outstrips any other area, as it equips communities with greater capacities to identify, understand, and resist disinformation narratives. The success of Finland, which has integrated media literacy into its national curriculum and consistently ranks at the top of the European Media Literacy Index, provides a compelling international case study for this work. We must advocate for and fund a national media and digital literacy program, modelled on these successful international examples, to equip Australians with the critical thinking skills to identify and resist disinformation.

Recommendations for a Safer and More Accountable Electoral Environment

To address the challenges posed by the modern information ecosystem, the Australian Democracy Network recommends the following:

1. Legislate a federal truth in political advertising law, modeled on the South Australian legislation, to prohibit materially misleading statements of fact in all political communications. An independent body, such as an Electoral Communications Panel, should be established to administer and enforce the law.

2. Design and fund national media and digital literacy programs, modeled on international examples like Finland, to equip Australians with the critical thinking skills to identify and resist disinformation.

3. Legislative reforms should mandate that digital platforms and social media companies must cooperate with the AEC during a federal election period. This cooperation should include providing data access to the AEC for monitoring and analysis of electoral disinformation and removing content that has been identified as a clear threat to the electoral process.

Part 3: The Role of Money and Power in Australian Elections

The core mandate of the Australian Democracy Network (ADN) since its foundation has been to identify and reduce the disproportionate influence of "big money" and vested interests in our political system. We know that a healthy democracy is impossible when political outcomes are determined by the size of a bank balance rather than the contest of ideas.

While the *Electoral Legislation Amendment (Electoral Reform) Act 2025* introduced long-overdue measures, such as a lower donation disclosure threshold and expedited reporting, we believe the final legislation does not achieve its goal to truly get big money out of politics and level the playing field, and that it also severely limits the ability of charities to advocate during election periods.

The failures of the new legislation demand comprehensive reform to bring transparency and fairness to political financing. This means addressing three key flaws:

Unfair Spending Caps & Incumbency Advantage: The current framework maintains a disparity in campaign spending power. While major political parties have a generous national cap (up to $90 million), new voices and independent challengers face a comparatively lower per-electorate cap ($800,000) that could prevent them from challenging incumbents effectively in contested electorates. The design of these caps effectively institutionalises an incumbency advantage, limiting the public's choice at the ballot box. To fix this, we need to cap national election spending to a lower amount (e.g., $60 million) and require all electoral expenditure to count against seat caps to level the playing field and reduce the arms race of advertising and influence.

Opaque Political Funding: The current disclosure threshold, while lowered, still allows millions of dollars from industries with a vested interest in government decisions to be made under the disclosure threshold. The public remains in the dark about who's funding our politicians. We require all corporate and cash-for-access payments to be disclosed regardless of size to reduce the influence of big business on elections.

Lack of Independent Oversight: The system lacks genuine accountability for ensuring fairness and transparency. We need a strong, independent review board to set relevant caps and public funding arrangements that protects the system from partisan manipulation and ensures all voices, not just the loudest or wealthiest, are heard in our democracy.

The influence of money extends far beyond election day. As long as big industries like gambling, fossil fuels, and tobacco can exploit weak laws for financial gain, our democracy remains vulnerable to state capture.

Lobbying Transparency: We must push for greater transparency around who is influencing decision-makers. Reforms are needed to extend the federal Register of Lobbyists to include in-house lobbyists, require lobbyists to disclose details of their activities, and mandate the public release of Ministerial diaries for all Ministers, Shadow Ministers, and senior staff.

Whistleblower Protection: The threat of retaliation against individuals who expose misconduct in government or corporate lobbying is real. Strengthening protections for whistleblowers is essential to ensure that the public is not deprived of information regarding undue influence that may affect their vote.

The Stronger Charities Alliance: Endorsing the Charity Sector's Call

The Australian Democracy Network endorses the separate submission made by the Stronger Charities Alliance (SCA) to this inquiry. We believe that protecting the ability of charities to participate in democratic debate is central to a healthy electoral system.

The core concern raised by the SCA is that the recent electoral reforms have introduced a provision that creates an unnecessary and prohibitive administrative and regulatory burden on charities. The provision requires that a gift must be explicitly designated for a 'federal purpose' (i.e., electoral expenditure) to be used in a federal campaign account. This means that charities are effectively restricted from using their general, unrestricted donations for electoral advocacy.

We agree with the SCA that there is no public interest benefit in restricting the use of ordinary donations on electoral expenditure for charities, whose mission is legally bound to the public interest and who are prohibited from supporting or opposing specific candidates or parties. This provision risks effectively silencing community voices on critical issues during an election, serving only to further shrink civic space.

We also note that the speed with which the final version of this legislation moved through Parliament made it very challenging for the charities sector to fully understand the impacts of the proposed changes. Despite this, we did identify this problem to the Government and were assured that it would be fixed. It was not fixed during the legislative process, and therefore it is now essential that the Government does move to fix this problem, which we believe was unintended, without any further delay.

State Capture and Foreign/Domestic Interference

The terms of reference include a consideration of threats of interference, both foreign and domestic. This submission posits that such interference is not always a cyberattack or a geopolitical plot but often operates through the insidious process of state capture, where special interests have captured important segments of government agencies skewing government decision-making.[13] A sophisticated, well-funded ecosystem works to manipulate the public square and erode our shared understanding of reality. This ecosystem consists of a network of think tanks, campaign groups, media, and allied government actors who work in concert to launder corporate interests into seemingly mainstream public policy.

Recommendations for The Role of Money and Power in Australian Elections

To address the systemic vulnerabilities created by the influence of money and power in Australian elections and politics, the Australian Democracy Network recommends the following:

1. Amend the *Electoral Legislation Amendment (Electoral Reform) Act 2025* to remove the unnecessary and prohibitive administrative burden on charities that prevents them from using their general, unrestricted donations for electoral advocacy.

2. Extend comprehensive lobbying reform by making transparency mandatory across the entire political ecosystem. This should include: extending the federal Register of Lobbyists to include in-house lobbyists; requiring all lobbyists to disclose details of their activities, including who they meet and what they discuss; and complementing this by mandating the public release of Ministerial diaries for all Ministers, Shadow Ministers, and senior staff.

3. Strengthen legal protections for whistleblowers who expose misconduct in government or corporate lobbying, ensuring that the public is not deprived of information regarding undue influence and state capture.

Part 4: The Composition and Function of Parliament

Fixed Terms and Proportional Representation

[13] Grattan Institute, "How to rebuild trust in politics," grattan.edu.au/how-to-rebuild-trust-in-politics/, accessed September 26, 2025.

The Special Minister of State has asked the Committee to consider the composition of the Parliament, including the length of the parliamentary term and the number of elected representatives.

A move to fixed, four-year parliamentary terms has been a recurring proposal with widespread and cross-party support.[14] The arguments in favor are compelling: a four-year term would allow for better long-term policy planning, increase business confidence, and reduce the frequency and cost of elections. It would also remove the Prime Minister's unilateral power to call an election at a politically advantageous time. With all of Australia's states and territories having already moved to four-year terms, a federal shift would bring a much-needed consistency to Australia's electoral calendar.

Additionally, proposals have been put forward to increase the number of federal representatives. Currently, the House of Representatives is designed to accommodate up to 172 members, with provisions for an ultimate total of 240. With an average of over 117,000 electors per seat in 2022, increasing the number of representatives would address an issue of political representation, ensuring that the population growth is reflected in the composition of Parliament.[15]

These issues represent fundamental reforms that would strengthen the efficiency and long-term stability of Australia's democratic institutions. They warrant serious consideration by the Committee as part of a broader discussion on modernising Parliament to meet the demands of the 21st century.

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[14] Australian National University, "Opinion: Why we're ready to switch to four-year terms for Federal Parliament," ausi.anu.edu.au/news/opinion-why-were-ready-switch-four-year-terms-federal-parliamen, accessed September 26, 2025.
[15] Parliamentary Budget Office, "Increasing the size of the Federal Parliament," pbo.gov.au/sites/default/files/2025-04/PBO%20-%20Increasing%20the%20size%20of%20the%20Federal%20Parliament.pdf, accessed September 26, 2025.